

Baldev Raj Kapur vs State on 6 February, 2009

Equivalent citations: 2010 AIR SCW 875, 2010 (12) SCC 26, 2009 CRI. L. J. 1418, 2010 (3) AIR JHAR R 510, (2010) 1 RECCRIR 737, (2010) 70 ALLCRIC 795, (2010) 1 ALLCRIR 1080, (2010) 1 CURCRIR 246, 2010 ALLMR(CRI) 652, (2010) 1 CHANDCRIC 218, (2010) 1 UC 342, 2011 (1) SCC (CRI) 293, (2009) 1 CRIMES 431, (2009) 157 DLT 747, (2010) 1 SCALE 239, (2009) 4 RECCRIR 806, (2009) 1 DLT(CRL) 750, (2009) 2 CHANDCRIC 198

Author: Aruna Suresh

Bench: Aruna Suresh

"REPORTABLE"

* HIGH COURT OF DELHI AT NEW DELHI

+ Crl. Rev. (P). 431/2005 & Crl. M.A.
No. 5436/05

Date of decision: February 06, 2009

BALDEV RAJ KAPUR Petitioner
! Through : Mr. P.R. Thakur, Adv.

Versus

\$ STATE Respondent
^ Through : Mr. O.P. Saxena, APP
SI Sudhir Kumar

%
CORAM:
HON'BLE MS. JUSTICE ARUNA SURESH

(1) Whether reporters of local paper may be
allowed to see the judgment?

(2) To be referred to the reporter or not? Yes

(3) Whether the judgment should be reported
in the Digest ? Yes

JUDGMENT

ARUNA SURESH, J.

1. Impugning the order of the learned Additional Sessions Judge dated 25.4.2005 whereby the trial court, while discharging the petitioner for offences under Sections 304A/308 of Indian Penal Code (hereinafter referred to as IPC) concluded that, prima facie a case for offences under Sections 304 Part II/308 IPC was made out against the petitioner.

2. In brief the allegations of the prosecution against the petitioner are that, he is the owner of Shop No. 23, DDA Market, Shanti Store, Punjabi Bagh, Delhi. On 22.10.2002, the said four-storeyed building, which was under construction, collapsed. This resulted into death of six labourers and grievous injuries to eight labourers. Injured Arun Kumar, who was working as mason in the said building made a statement to the police in the hospital and on his statement FIR No. 832/2002 for offences under Sections 304/308/427/34 IPC was registered at Police Station Punjabi Bagh against the petitioner and co-accused Mohd. Kaif. Petitioner was arrested and released on bail. Co-accused, Mohd. Kaif the contractor could not be arrested and was declared proclaimed offender.

3. Mr. P.R. Thakur, learned counsel for the petitioner has submitted that the trial court adopted an incorrect approach when it observed that prima facie an offence under Section 304 Part II/308 IPC was made out against the petitioner. Petitioner was the owner of the shop and being an owner and a layman had no knowledge about the manner in which the construction was to be raised, the material to be used in the construction of the building and also that only repair and renovation work was being carried out in the building as the three-storeyed building already existed at the spot when renovation work was started. For that purpose, he has referred to the House Assessment Demands made by the House Tax Department of Municipal Corporation of Delhi in the year 1995 and again in the year 1998. It is further submitted by the learned counsel for the petitioner that it was the contractor who was responsible for the construction work and he had employed the labour for carrying out necessary repairs/ renovation/construction in the building, the contractor used to receive payment from the petitioner, the construction material also used to be procured by the contractor himself, he used to give necessary instructions to the labour for carrying out the work. Learned counsel for the petitioner has also submitted that at the relevant time petitioner had undergone heart surgery and was not physically fit to visit the spot nor, he was present at the time when the building collapsed. He urged that the order of the trial court dated 25.4.2005 is based on conjectures and surmises and not on prima facie evidence available on record, is bad in law and deserves to be set aside.

4. Mr. O.P. Saxena, learned APP for the State has submitted that as per the complaint, petitioner along with the contractor had been ignoring the cautions which were being given to them by the mason and insisted on expediting the work which resulted into collapse of the building and therefore, being owner of the premises, he was in the knowledge that such act could cause death of any of the labourer working there and therefore, the trial court was right when it observed that prima facie offences under Section 304 Part II read with Section 308/34 IPC were made out against the petitioner and prayed that revision being without merits deserves dismissal.

5. Undisputedly, the petitioner who happened to be accused No. 1 before the trial court is the owner of the collapsed building. It is also not in dispute that petitioner had engaged the services of contractor Mohd. Kaif for the job of construction under an oral contract. There was a sanctioned

building plan and the Municipal Corporation of Delhi was also collecting house tax from the petitioner after its inspection and assessment. (The house assessment of the entire fourth storeyed building has been questioned by the prosecution.) It was for the MCD to see if any unauthorized construction was being carried on at the premises owned by the petitioner. Be that as it may, this is not an issue to be considered by this Court in this revision petition.

6. Admittedly, petitioner was not present at the spot when the building collapsed. It is also not in dispute that petitioner was a layman and did not know the technicalities of construction of a building and he left the entire job at the hands of the contractor and therefore, glazy consented to every step or advice or instructions given by the contractor to his labour for carrying out necessary construction.

7. Complainant was working as a mason and was in the know of technicalities of the building construction. He had worked with Mohd. Kaif earlier also. There was no direct nexus of the petitioner with the stages of construction of the building.

8. The trial court on the basis of the evidence placed on record observed:

"From the reading of both the section 299 and 300 of IPC and the exceptions provided u/s 300 of IPC, I am of the convinced view that accused No.1 had given the contract to accused No.2. It was within his knowledge that a building is likely to constructed on the spot and without the knowledge and active participation in the stages of constructions, no owner would make payments to the contractor. Accused No.1 cannot be absolved off his role in over seeing the completion of construction for which the work was entrusted to the contractor. He had the knowledge about the construction and the stages there of while making the payments on various dates to the contractor. The owner of the building has a duty to the workers involved in construction, the neighbourhood and the users of the road in so far as the building is situate on a main road. I find that in the instant case the accused No.1 being the owner of the building had enough knowledge about the construction and the various stages of progress made in the construction. It was incumbent upon the part of accused No.1 to have ensured by giving proper instructions to the contractor and to have taken of the precautionary steps for strict compliance there of so that the construction would not cause any hardship or tragic incident. Hence the accused No.1 had enough knowledge about the impending dangers and though this act can be viewed as negligence, the same is positive knowledge in so far as the offence u/s 304 IPC is concerned."

9. The Court finally concluded:

"After having gone through the entire charge sheet, I find that there is a prima facie case against accused as cited in the charge sheet except u/s 427 of IPC.

Hence, charges be framed accordingly, u/s 304 (part II) of IPC."

10. The trial court went wrong in interpreting the provisions contained in Sections 299 and 300 IPC. Section 299 IPC defines culpable homicide which may amount to murder within the meaning of Section 300 IPC or may amount to culpable homicide not amounting to murder inviting the penal provisions of Section 304 IPC. All murders are culpable homicide but it is not vice-versa as culpable homicide in the scheme of the Penal Code is genus and murder is its specie. Therefore, culpable homicide, in the absence of special characteristics of murder tantamounts to culpable homicide not amounting to murder. In this case, the trial court has taken cognizance of culpable homicide based on presumptive knowledge of the petitioner, punishable under Part (II) of Section 304 IPC.

11. Under Section 304 Part II of IPC the degree of knowledge required is, knowledge of the likelihood of death. To make out a case against an accused of culpable homicide under Section 304 Part II of IPC, the prosecution has to show prima facie that the act complained of was done with the knowledge, with the awareness of the accused about the consequence of death or grievous injury of such kind as would result in death. In the crucial aspect, therefore, the state of mind i.e. intention or knowledge of the consequence, proof of such intention or knowledge has to be of high order and all other hypothesis of innocence of accused have to be ruled out. Direct nexus between the death of a person and the act of the accused is essential to attract the provisions of Section 304 Part II IPC.

12. The material placed on record and relied upon before the trial court by the prosecution for framing a charge under Section 304 Part II IPC, as discussed above, in my view cannot support such a charge unless it indicated prima facie that on that fateful day when the building collapsed it was being constructed under the direct supervision of the petitioner or on his instructions and it was within the knowledge of the petitioner that such construction was likely to cause death of human beings.

13. It is not the case of the prosecution that petitioner had inflicted any injuries on the person of the deceased labourers or demolished the building knowing it well that it was likely to cause death of the labourers on whom the debris might fall. The knowledge as inferred by the trial court while proceeding against the petitioner for offences under Section 304 Part II of IPC and Section 308 IPC is derived from the petitioner being the owner and not on the basis of any evidence available on the record to indicate that petitioner had the knowledge that by doing an act of raising a particular construction in the building, he was likely to cause death of the mason and other labourers working therein or, such construction likely to cause injuries dangerous in nature on their persons, attracting the provisions of Section 304/308 IPC. To attract the provisions of Section 304 Part II IPC/308 IPC, presence of the petitioner and his direct nexus with the act of causing death of six labourers and causing injuries on the person of eight labourers is required to be shown.

14. An offence of the like nature, at the best can be termed as rash and negligent act on the part of the contractor who was getting the building constructed, by employing the deceased persons, injured persons and other labourers at the relevant time when work of stones, electricity, sanitary and construction work was going on.

15. Simply because a chargesheet was filed by the prosecution for offences under Sections 304/308/427/34 IPC, the trial court should not have framed charges mechanically without prima

facie sifting or weighing the evidence as placed on record by the prosecution to reach to a proper conclusion, what offence, if any, was made out against the petitioner.

16. Petitioner cannot be held vicariously liable for an offence under Section 304 Part II IPC.

17. In *Vijay Mafatlal Solanki and Anr. v. The State of Gujarat* - MANU/GJ/0775/2005 wherein a building in Ahmedabad city was seriously damaged and major portion of the said building collapsed on 26.1.2001 and the prosecution had chargesheeted the petitioners as persons responsible for offences under Section 304 Part II besides other sections, for the collapse of the building on the plea that super structure had collapsed because of irresponsible pattern of construction and certain omissions and commissions in constructing the building which ultimately collapsed resulting into the loss of lives and properties of the individuals who were occupying the flats in the said apartment, it was observed:

"9. Having considered the totality emerging from record and in view of the discussion made above, the Court is of the view that, prima facie, the accused persons could not have been chargesheeted for the offence punishable under Section 304 Part : II of the IPC along with other sections which the accused is charged, as there is no element of knowledge or intention on the part of the petitioner. As there is also no element of any criminal conspiracy, the petitioners could not have been chargesheeted for the offence punishable under Section 120-B of IPC. This section has a direct nexus with an intention and mitigation of mind. When a major change is found to be related to the element of negligence, may be by overt act or by omission, there can not be even assumption of conspiracy.

Lack of reasons, to earn some more profit or to get illegal gratification may result in to negligence and also criminal negligence. The same is an independent offence punishable under IPC. The court is prima facie satisfied that the element of intention to commit a criminal wrong is lacking and, therefore, the accused could not have been chargesheeted for the said offence. So, the petitioners at least should have been discharged from the offence punishable under section 304 & 120 -B of the IPC and Id. Addl. Sessions Judge ought to have said that the accused should be asked to face charge of the offence punishable under Section 304-A of IPC along with other offences charges referred to above."

18. Reading of Section 304 Part II makes it clear that an accused can be charged under the said provision for an offence of culpable homicide not amounting to murder only when being so charged, it is alleged that the accused has done the act with the knowledge that it is likely to cause death or to cause such bodily injury as is likely to cause death; under such circumstances the charged offences would fall under Section 304 Part II. But, before any charge is framed under Section 304 Part II, the material on record must at least prima facie show that the accused is guilty of homicide and the act committed must amount to culpable homicide. Where the material relied upon for framing such a charge against the accused concerned falls short of even prima facie indicating that the accused appeared to be guilty of an offence of culpable homicide under Section 304 Part II IPC not

amounting to murder, it is in the interest of justice that provisions of Section 304 Part II IPC are eliminated.

19. Consequently, the material placed on record and relied upon before the trial court by the prosecution for framing a charge under Section 304 Part II IPC, as discussed, in my view, cannot support such a charge unless, it indicated prima facie that on that fateful day when the building collapsed, it was being constructed under the direct supervision of the petitioner or on his instructions and it was within the knowledge of the petitioner that such construction was likely to cause death of human beings.

20. Therefore, the trial court did not rightly consider the entire material placed on record by the prosecution while charging the petitioner for offences under Section 304 Part II IPC. The material placed on record did not call for framing of a charge against the petitioner only on the plea that, petitioner being owner of the property was in the knowledge of the consequences of the construction, that it was likely to cause death or bodily injuries to the labourers working therein.

21. What is left to be seen, if any offence under Section 304-A IPC is made out against the petitioner in the light of the material available on the record as discussed above.

22. Petitioner being an owner of the property and a layman cannot be fasten with the liability of having caused death of the workers by his rash and negligent act. There is no evidence to indicate direct nexus between the petitioner and the alleged rash and negligent act without the intervention of another's negligence which caused death of six workers and bodily injuries to eight workers. Rather negligence is attributed to co-accused Mohd. Kaif.

23. In *Emperor v. Omkar Rampratap and another* -

1902 BLR (IV) 679, in similar circumstances when some workers died while working in the premises of the contractor, which he had hired, due to the alleged rash and negligent act on the part of the accused persons for which they were charged for offences under Section 304 A IPC, it was observed:

"To impose criminal liability on the accused it is necessary that the death should have been the direct result of a rash and negligent act of the accused and that act must have been the proximate and efficient cause without the intervention of another negligence. It must have been the causa causans; it is not enough that it may have been the causa sine qua non."

24. This judgment is being consistently followed by various High Courts.

25. In *State of Maharashtra v. V. Govind Salalsure and others* - 1991 (2) Cri. LC 623 where workers were doing the work of repairing the well owned by one of the accused persons, the well collapsed and 13 workers were trapped in debris and died on the spot and about 8 workers received injuries in the incident and the owner of the well was not present at the time of the accident and there was no evidence to show that the work was being carried out with the consent or knowledge of the accused, it was held that merely because large number of persons died the accused could not be punished as

there is no presumption in favour of the prosecution that accidental death is caused by rash and negligent act.

26. Similarly in Krishan Lal v. State of Haryana -

1994 (1) Recent Criminal Reports 259 where the owner was getting constructed the building through a contractor, wall of building collapsed killing three persons and injuring seven persons and the owner was chargesheeted for offences under Section 304/304-A IPC, it was observed that petitioners were proprietors of the building which was under construction and there was no negligence of any kind on their part; that neither the essential ingredients of the offence under Section 304 of the IPC nor those of 304 A were made out.

27. In the present case petitioner happened to be owner of the property, a layman and had not given any instructions to the labour and the masons who were working there. There is no prima facie evidence to indicate that the petitioner had been visiting the place oftenly specially a day or two earlier to the date of the incident. It cannot be said that there was any direct nexus between the petitioner and the rash and negligent act killing six workers and injuring eight workers due to collapse of the building. Therefore, under the circumstances of the case even the ingredients incorporated in Section 304 A IPC are not made out against the petitioner.

28. Hence petition is allowed. The order of the trial court dated 25.4.2005 is hereby quashed. Petitioner is discharged of the offences charged with. The trial court shall proceed against the contractor/co-accused Mohd. Kaif under Section 299 Cr.P.C. who has been declared proclaimed offender.

29. Trial court record along with an attested copy of the order be sent back to the trial court through special messenger.

(ARUNA SURESH) JUDGE February 06, 2009 jk